

WALLACE, JR VS. ARMSDON
CASE NUMBER: 23CH-0203175

Tentative Ruling on Motion to Be Relieved as Counsel: Counsel Jacob Levin, seeks to be relieved as counsel of record for Respondent, Michael Armsdon. CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular it requires the use of specific mandatory Judicial Council forms and evidence supporting service of all forms, including the proposed order, on the clients as well as information related to why the motion has been brought instead of filing the substitution of attorney. CRC 3.1362(c) requires the supporting declaration to provide an explanation as to why the motion is necessary in place of a filing a consent to substitution under CCP § 284(1). Mr. Levin indicates that there has been a “breakdown” in the attorney-client relationship. While specifics were not provided, the general information provided is sufficient to establish good cause to be relieved as counsel.

CRC 3.1362(d) requires service of the motion, supporting declaration and proposed order on the client and “all parties who have appeared in the case.” The Declaration in Support states that Respondent was served by mail at his last known address. No proof of service has been filed to reflect when the Respondent was served and if Respondent was served with all required documents; specifically, the motion, declaration AND proposed order. Additionally, as noted above, Petitioner was required to be served as well. There is no proof of service for the Petitioner. The Court cannot grant the motion without a valid proof of service reflecting timely service of all required documents on both the Petitioner and Respondent.

The Motion to Be Relieved as Counsel is **DENIED** without prejudice. Counsel is to prepare the Order.